



Hiscox Insurance Policy summaries





Hiscox Business Insurance

Policy summary

Your Hiscox Business Insurance policy summaries

This document contains the summaries for the General terms and conditions and any policy covers you have selected to protect your business. These summaries outline the key information about your policy covers to help you understand what you have bought, what you are covered for and what your obligations are.

However, you should carefully read all of your policy documentation and ensure that you understand its terms and conditions in full. If you have any queries, you should contact Hiscox or your broker.

Claims service

It is when you make a claim that you really find out how good your insurer is and we are confident that you will not find a better service in the UK. Hiscox prides itself on its fair, efficient and sensible claims service. We offer you access to experienced and dedicated claims handlers as well as experts including legal teams, loss adjusters and disaster management companies. Hiscox aims to handle claims quickly and efficiently, while minimising any disruption to you.

You must notify us of anything likely to lead to a claim under this policy and comply with the obligations in respect of claims set out in the General terms and conditions and the particular section of your policy under which you are making the claim.

If you need to notify us of anything, please contact our experienced claims team using the contact points shown in your policy schedule or on 0800 280 0351 8:30am – 5:30pm Monday to Friday or email claims@hiscox.co.uk

Policy length

The period of insurance is shown on your policy schedule. Your policy schedule will also show if the policy is on a continuing cover basis. If it is on a continuing cover basis, we will renew your policy each year for another 12 months and continue to take payment (including any premium adjustment shown in your renewal invitation) using your existing arrangement, unless you tell us otherwise or if your risk changes. If your policy schedule does not show that the policy is on a continuing cover basis, cover will cease at the end of the period of insurance, unless you renew your policy with us.

We will provide you with a statement of fact each year and provided that the information contained within the statement of fact is true, complete and accurate, you do not need to provide us with any further information at renewal. If any of the information in your statement of fact is not true, complete and accurate, you must let us know or your insurance advisor know. If you do not do so it may affect the validity of the policy or the amount we will pay for any claim.

Retroactive dates, geographical and jurisdiction limits

Where any section of your policy schedule includes a retroactive date, we will not make any payment for any claim or loss under that section which arises from any activity performed or any act, incident or occurrence taking place, before the retroactive date.

Where any section of your policy schedule shows the geographical limits which apply to that section of the policy, we will only pay for claims and losses under that section which arise from activities performed or acts, incidents or occurrences taking place within those geographical limits.

Where any section provides cover in respect of your liability to third parties, we will only cover claims first made in a country within the applicable courts stated in that section of your policy schedule.

Cancellation rights

The General terms and conditions explain that you can cancel your policy by giving us 30 days' notice. If we need to cancel the policy, we will give you 30 days' notice in writing. However, you should note that there is an exception to our 30-day notice period, which is triggered when we don't receive your Direct Debit payments within the agreed 14-day period. At this point, we will contact you as soon as possible and stop the policy immediately.

Underwritten by: Hiscox Underwriting Ltd on behalf of the insurers named in the schedule.



Hiscox Business Insurance

Policy summary

Professional indemnity insurance for technology companies

Policy summary

Policy wording ref: 22413 WD-PROF-UK-TEC(2)

Key benefits: what risks are you protected against?

Professional indemnity insurance covers you for compensation you have to pay to your clients or third parties as a result of problems with your work. We will pay for claims which are made against you during the period of insurance, up to the limit shown in your policy schedule or as otherwise specified in the How much we will pay section of your policy wording. We will also pay your legal defence costs incurred with our agreement in respect of covered claims.

We will pay compensation in relation to claims made by your client against you for:

- breach of any contract between you and your client, including reasonable compensatory payments;
- issues arising from your delivery of a business activity for a client where this involves your use of artificial intelligence or generative AI;
- a vulnerability caused by you to the computer or digital technology or green technology operated by you or your client, which has led to a cyber attack or hacker affecting such computer systems;
- errors in the creation, modification or maintenance of computer and digital technology or green technology which have caused an interruption to your client's business;
- the processing, storage, loss or destruction of personal data;
- death, personal injury (including mental injury or disease) or property damage caused by your computer or digital technology or green technology failing to perform its intended function.

We will also pay compensation in relation to claims made by any party (including your client) against you for:

- infringement of intellectual property rights such as copyright or trademark, including where this arises from your use of artificial intelligence;
- negligence or breach of duty: if you fail in a duty of care to your client, perhaps giving incorrect advice or making a mistake in your work;
- defamation: libel and slander;
- work undertaken on your behalf by sub-contractors or outsourcers. However, we reserve the right to recover losses from your sub-contractors or outsourcers;
- dishonesty of your employees, sub-contractors and outsourcers;
- any other civil liability: this means that if a claim or loss occurs because of your business activities and we haven't specifically excluded it and it's not a criminal prosecution, it's covered;

We will also pay your losses as a result of:

- any tangible documents needed for your business which are lost, damaged or destroyed;
- work undertaken on your behalf by any overseas support staff, or by another person or entity for the purpose of a joint-venture.

In addition we will pay:

- towards your outstanding fees owed by a client, if by taking such action, the client agrees not to pursue a claim against you;
- payments towards the costs of rectifying any error, including the costs required to mitigate any resulting loss or damage;
- service credits provided to your client in full or partial settlement of a covered claim;
- the cost to engage a consultant to manage your response to a covered claim or to replace a senior manager or director whose time is diverted to the management of a covered claim;
- in respect of claims brought against an entity that contractually requires you to note them as an additional insured on your policy, provided that such claim against the additional insured arises due an act, error or omission by you;
- compensation where your attendance at court is required in connection with a covered claim.

Significant or unusual exclusions and limitations

We will not make any payment for your lost profit or any trading loss suffered by you. We will not pay for claims or losses arising from:

- any reserved legal advice or any activity regulated by the Financial Conduct Authority;
- infringement of patent or misappropriation of a trade secret;

- any bodily or mental injury or death unless in relation to mental anguish due to defamation. This also does not apply to a claim for injury arising from your computer or digital technology or green technology failing to perform its intended function;
- the loss, destruction or damage to tangible property, unless arising from your computer or digital technology or green technology failing to perform its intended function. This exclusion does not apply to any claim for damage to electronic data or the loss of any document which is necessary for the performance of your business activity which is lost whilst in your possession;
- the failure of service by an internet service provider, cloud services provider or other utility service, other than where your business activities provide these services;
- the ownership, use or possession of any land, building, animal or vehicle;
- any breach of your obligations as an employer;
- any discrimination, harassment or unfair treatment;
- any violation or alleged violation of laws relating to discrimination on the basis of disability;
- anything which was likely to lead to a claim and which you knew about before the policy started;
- any costs or expenses involved to recall any software (including artificial intelligence) or hardware where required to do so by injunction;
- the chargeback or reversal of any payment transaction;
- terrorism, civil commotion, strikes, war, communicable disease or nuclear risks; including any fear or threat of such an incident, or any action taken in controlling, preventing or responding to such an incident;
- a cyber attack, hacker or social engineering communication; including any fear or threat of such an incident, or any action taken in controlling, preventing or responding to a such an incident. This does not apply to any claim arising directly from a vulnerability caused to computer or digital technology or green technology operated by you or your client which has led to a cyber attack or hacker affecting such computer systems;
- a failure to comply with any US or Canadian law relating to the collecting, processing, storage or use of biometric or genetic information, or in respect of claims arising from unauthorised monitoring, tracking or profiling of personal data or US or Canadian law relating to the disclosure of information regarding the rental, sale or access to audio visual materials;
- the processing, acquisition, storage, damage, loss, alteration, disclosure, use of or access to personal data. This exclusion does not apply to claims brought by a client where they arise from your performance of a business activity.

Please read the policy for details of its terms in full.



Cyber and data insurance

Policy summary

Policy wording ref: 19029 WD-PIP-UK-CCLEAR(6)

Key benefits: what risks are you protected against?

Hiscox CyberClear cyber and data insurance is designed to support and protect you from evolving cyber threats and risks associated with data, whether electronic or non-electronic. We will pay for:-

- your own losses arising during the indemnity period from cyber or data incidents discovered during the period of insurance;
- claims and investigations made against you during the period of insurance arising from your cyber or data liability, including your legal defence costs for covered claims and investigations,

up to the limit of indemnity stated in the schedule, which also includes further limits which apply to particular covers.

Please check your policy schedule to see which of the following sections you benefit from.

A. Your own losses

We will pay for losses incurred by you if you suffer:

- the unauthorised acquisition, access, use or disclosure of personal data or confidential corporate information;
- a failure by you to secure your computer system against unauthorised access or use;
- a threat to damage your systems or disseminate sensitive information, following unauthorised access to your systems;
- a digital attack designed to disrupt access to or the operation of your computer system.

If you suffer any of the above, we will pay:

- the costs of computer forensic analysis to confirm a data breach;
- legal costs incurred to manage a data breach;
- costs incurred in notifying data subjects and any regulatory body, and providing credit monitoring services;
- the cost of a ransom demand and specialists to handle ransom negotiations.

We will also pay your additional business expenses caused directly by a cyber attack including the costs to regain access to or restore your data assets, together with the costs of a public relations consultant to protect your reputation and manage your response to the incident.

B. Cyber business interruption

if you suffer:

- an interruption to your business caused by a covered breach, cyber attack, illegal threat or security failure; and/or
- if you have purchased:
 - the operational error business interruption extension and suffer an interruption to your business caused by a non-malicious act or omission by an employee in the handling of a data asset or the maintenance or development of your computer system; and/or
 - the dependant business interruption extension and suffer an interruption to your business caused by a dependent business suffering a security failure or cyber attack,

we will pay:

- your loss of income, and increased costs of working resulting solely and directly from the interruption, together with your loss of income if any of your customers terminate or decide not to renew their contract(s) with due to the interruption to your business.
- in the alternative, if stated on your schedule, we will pay you a daily interruption benefit;

C. Claims and investigations against you

We will cover you if:

- a claim is made against you for breach of confidence, personal data, sensitive commercial information or any contractual duty of confidentiality;
- an investigation is commenced arising from the unauthorised acquisition, access, use or disclosure of data, or breach of a law governing the handling of personal data, including GDPR investigations;
- a claim is brought against you for breach of PCI-DSS or for infringement of intellectual property rights, defamation or breach of licence arising from alterations or additions made by a hacker to your email, website or social media accounts; or
- a claim is brought against you for transmission of a virus, denial of service attack or prevention of authorised access to a computer system.

D. Your losses from crime

We will pay your losses arising directly from crime, which includes the electronic or physical theft of money, securities or property, dishonesty or fraud carried out by your employee, the fraudulent or dishonest use of your electronic identity or you transferring money, securities or property in response to a social engineering communication.

E. Bricking

If any property which you own, and which through digital connectivity is connected to your computer system used for your business is rendered unusable as a result of a security failure, cyber attack, hacker or transmission of a virus, we will pay the costs of repairing or replacing the unusable part of the equipment.

F. Additional covers

We will also:

- pay to upgrade existing hardware and software and to obtain risk management advice to prevent or minimise a recurrence of certain claims or losses;
- cover your statutory directors, partners or officers if they suffer a loss or a claim is brought against them in their personal capacity which would have been covered under the policy if suffered by, or brought against, you; and
- pay a reward at our discretion for information leading to the arrest and conviction of those responsible for causing the loss.

Significant or unusual exclusions and limitations

We do not pay for any claims, losses, breaches, privacy investigations or threats due to:

- your breach of duty in the provision of products or services to your client, other than claims made directly against you by data subjects in respect of their own personal data;
- the failure of service provided by an internet service, telecommunications or utilities supplier, or any other infrastructure provider;
- breach of intellectual property rights, other than where arising due to any claim under the Online liability section;
- personal injury or damage to tangible property, other than where covered under Online liability, Your losses from crime or bricking;
- war or due to cyber operations carried out by, at the direction or under the control of a state;
- degradation or deterioration of your computer system, other than due to operational error;
- the use of any outdated or unsupported computer system;
- any purchase, use or development of blockchain or any other distributed ledger technology, however this does not apply to covered cyber ransom losses;
- any actual or alleged monitoring, tracking or profiling of an individual without their authorisation;
- any failure to comply with a federal, state or local law of the United States of America or Canada relating to the use, collection, processing or storage of biometric or genetic data;
- cyber extortion, unless you inform or allow us to inform the appropriate law enforcement authorities.

Additionally, we do not pay your losses from crime due to:

- any act, breach or omission committed by any employee after you first discovered any crime being committed by or in collusion with that employee;
- the use of any actual or counterfeit letter of credit, bill of lading, shipping document, warehouse receipt, account receivable, or any other similar document unless the loss arises as a direct result of dishonesty of an employee or loss of assets.

Please refer to your schedule and policy wording for further information regarding the applicable time excess or waiting period, which is the period of time after the incident for which you are not covered.

If you notify us within 72 hours of your first awareness of any actual or suspected data breach, we will waive the excess in respect of that breach, other than for cyber business interruption losses or in respect of your losses from crime.

Legal protection insurance

Policy summary

Policy wording ref: 16375 WD-PROF-UK-LST(3)

Key benefits: what risks are you protected against?

Legal protection insurance covers you for legal costs, including solicitors' and barristers' fees, court costs, expenses for expert witnesses, attendance expenses and accountants' fees. It will also pay the costs of appealing or defending an appeal. The limit of indemnity shown in the policy schedule is for all claims resulting from one or more event arising at the same time or from the same originating cause.

The policy covers:

- employment disputes: defending your legal rights in respect of any dispute with an employee or ex-employee relating to their contract of employment or their statutory rights, or to recover possession of your premises from them;
- compensation awards: basic and compensatory awards, and/or damages arising from a breach of an employee's or ex-employee's statutory rights under employment legislation;
- legal defence: defending your legal rights in respect of any non-motor criminal prosecutions and some specific civil actions, such as a breach under data protection legislation;
- property protection: pursuing your legal rights in a civil action following an event causing physical damage to physical property which you own or are responsible for, or any nuisance or trespass;
- personal injury: at your request, pursuing your and your employees' and their family members' legal rights following their death or bodily injury;
- tax protection: negotiating on your behalf and representing you in any appeal proceedings arising out of an Income Tax or Corporation Tax compliance check by, or a VAT or employer compliance dispute with, HM Revenue or Customs;
- contract disputes: negotiating for your legal rights in a contractual dispute over any agreement entered into by you for the purchase or provision of goods or services, where the disputed amount exceeds £250 (including VAT);
- debt recovery: negotiating for your legal rights to recover money and interest due from the sale or provision of goods or services, where the debt exceeds £250 (including VAT).

Significant or unusual exclusions and limitations

The policy will not cover:

- any civil claim unless it is more likely than not that the insured person will recover damages or make a successful defence;
- any claim reported to ARAG more than 180 days after the date that the relevant insured person should have known about the insured incident or any costs or expenses incurred before ARAG have agreed to accept the claim;
- legal costs in excess of £100 per hour (this amount may vary from time to time) when, with ARAG's agreement, you choose to use your own lawyer;
- any claim relating to patents, copyrights, trademarks, merchandise marks, registered designs, intellectual property, secrecy and confidentiality agreements;
- any claim relating to rights under a franchise or agency agreement entered into by you;
- judicial review, coroner's inquest or fatal accident enquiry;
- any claim where the insured person is not represented by a law firm, barrister or tax expert;
- any claim relating to written or verbal remarks that damage the insured person's reputation;
- employment disputes: in respect of damages for personal injury;
- employment disputes: relating to the Transfer of Undertakings (Protection of Employment) Regulations 2006 or the Transfer of Employment (Pension Protection) Regulations;
- employment disputes: pursuit of an employment claim
- compensation awards: following a breach of statutory duty, where you did not seek and follow legal advice after becoming aware of the issue;
- legal defence: any claim which leads to an insured person being prosecuted for infringement of road traffic laws or regulations in connection with the ownership, driving or use of a motor vehicle;
- legal defence: any claim relating to damage to or the loss, alteration, corruption, distortion, reduction of functionality, availability or operation of stored personal data arising from any malicious or damaging code or computer virus;
- personal injury: any claim relating to any illness or bodily injury which develops gradually or is not caused by a specific or sudden accident;
- personal injury: any claim relating to psychological injury or mental illness, unless following a specific or sudden accident;
- tax protection: any claim relating to import or excise duties or any tax avoidance scheme;
- contract disputes or debt recovery: relating to the amount of an insurance claim or any loan, mortgage, pension or other financial product, other than disputes with professional advisors in connection with these matters;



- contract disputes: arising from a breach or alleged breach of professional duty by an insured person;
- contract disputes or debt recovery: terms of a lease, licence or tenancy of land or buildings;
- contract disputes or debt recovery: any dispute or debt from an agreement entered into prior to the ARAG policy start date, if the date of occurrence is within the first 90 days, unless equivalent legal expenses insurance was in force immediately before.

Your claim may also be declined or the amount that ARAG pay may be reduced if you negotiate any settlement without ARAG's written consent or if you do not tell ARAG about any settlement offer.

Please read the policy for details of terms in full.



Crisis containment

Policy summary

Policy wording ref: WD-PIP-UK-CRI(2) 9809 02/13

Key benefits: what risks are you protected against?

Crisis containment insurance covers you for the costs of engaging the services of a public relations crisis specialist in relation to a covered claim under any section of your Hiscox policy.

We will pay up to the amounts shown in the policy schedule for:

- costs incurred with our prior written consent in utilising the services of the company named in the policy schedule to limit or mitigate the impact of adverse or negative publicity of or media attention to you;
- emergency costs incurred without our consent outside of working hours to limit or mitigate the impact of adverse or negative publicity of or media attention to you.

Significant or unusual exclusions and limitations

We will not pay for crisis containment costs:

- which do not relate to a claim which is covered under another section of this policy;
- which relate to a claim under any management liability – employment practices liability section;
- which relate to any employment claim under any management liability section;
- which relate to any incident, act, investigation, problem or business trend affecting your profession or industry in part or in whole, rather than just you.

We also don't pay for crisis containment costs unless:

- you notify us of the crisis immediately by telephone, using the number stated in the schedule;
- you co-operate fully with us and the crisis containment provider managing the crisis.

Please read the policy for details of terms in full.

General terms and conditions

Policy summary

Policy wording ref: 15661 WD-COM-UK-GTCA(5)

Key terms and conditions

The General terms and conditions form part of your policy and should be read together with the relevant sections for any policy covers you have selected and with your policy schedule including any endorsements. You should read and check all your insurance documents to ensure that you are aware of and understand the cover, limits and other terms and conditions that apply.

The General terms and conditions are made up of the following sections:

General definitions

We use some words throughout your policy with the same meaning wherever they appear. These are shown in bold type and we explain in the General terms and conditions what they mean.

General conditions

These apply to the whole of your policy and set out below is a summary of some of the key conditions.

- **Presentation of the risk**

Your premium and insurance are based on the information that you have given us.

You must:

- fairly present the risk to us, including making sure the details provided to us accurately reflect your business and that you have disclosed to us any other information material to the insurance;
- let us know immediately if anything needs to change or of any changes to your circumstances during the period of insurance which may materially affect your insurance;
- comply with the terms and conditions of your policy.

If you fail to do so, you could invalidate your policy, claims may not be paid or the amount we pay may be reduced.

- **Other insurance**

We will not pay any loss that is covered by another insurance policy held by you, except for any amount above what that other policy pays, and then only up to the amount we would have paid under this policy.

- **Cover under multiple sections**

If you, or any other insured person under your policy, are entitled to cover under more than one section of the policy in respect of the same claim or loss, we will only provide cover under one section of the policy – being the section that provides you with the most advantageous cover.

- **Cancellation**

You can cancel your policy by giving us 30 days' notice. If we need to cancel the policy, we will give you 30 days' notice in writing. You will only be charged for the premiums due up to the date of cancellation unless we have accepted notification of a claim or potential claim or loss before the cancellation takes effect.

General claims conditions

These apply to the whole of your policy and set out below is a summary of some of the key claims conditions.

In the event of a claim or anything that may give rise to a claim, you must:

- comply with the obligations set out in the General claims conditions together with those set out in Your obligations in the section under which you are making the claim;
- notify us of the incident or event giving rise to the claim in accordance with and within the time frames set out in the notification provisions in your policy documentation;
- make every reasonable effort to mitigate any loss or liability.

If you fail to notify us when you first become aware of a shortcoming, fact or problem, admit you are liable for what has happened or fail to co-operate fully in the investigation of your claim, your claim may not be paid or the amount we pay may be reduced.

If you make a fraudulent claim or try to deceive us, we may terminate the policy.

General exclusions

We will not make payment for any damage, claims or losses arising from solar weather including from solar flares, magnetic field or magnetosphere fluctuations or disruptions. This exclusion applies to each and every section of your policy.

In addition, other exclusions apply to your policy and are included in the particular sections of the policy to which they apply.

Please read the policy for details of terms in full.



Hiscox Business Insurance

Policy summary

Any questions? Any complaints?

If you have any questions about your policy or the covers you have selected, please call us on 0800 280 0351. One of our business insurance experts will be on hand to answer your call and help you with any questions you may have.

If ever you're unhappy about anything we do, or fail to do, please contact our customer services team. They'll do all they can to put things right, but if you're still not satisfied, we'll tell you how to take your case to the Financial Ombudsman Service.

Telephone: 0800 1164 627

Address: Hiscox Customer Relations
The Hiscox Building
Peasholme Green
York YO1 7PR
United Kingdom

Email: customer.relations@hiscox.com

If you remain dissatisfied with the way your complaint has been dealt with you may ask the Financial Ombudsman Service to review your case. This does not affect your legal rights.

The address is:
Financial Ombudsman Service
Exchange Tower
London E14 9SR

Telephone: 0800 023 4567
+44 20 7964 0500 from outside the United Kingdom
Email: complaint.info@financial-ombudsman.org.uk

If you contact them or us, please quote the policy number shown in the schedule.

If we can't meet our obligations to you, you may be entitled to compensation. In that case, rest assured we're fully covered by the Financial Services Compensation Scheme (FSCS).